Ackn. approval
Dec 28

Answered Dec 30.

No. 152.

Mr Pratt

DEPARTMENT OF STATE
RECEIVED
DEC
26
1874

U. S. Legation, Japan,
Tokei, 19 November, 1874.

Mr Bingham
to the
Hon. Secretary of State.

Subject.

Convention between China and Japan, settling Formosa question. Mr Bingham expressed to Mr Okubo, Japanese Ambassador, the hope that no question of pecuniary indemnity would be allowed to prevent a peaceful settlement.

Enclosures.

1. Convention between China + Japan. with

with letter from Mr Terashima to Mr Bingham - Nov. 19, 1874.

2. Mr Bingham to Mr Terashima, Nov. 19th inst.

No 152.

U. S. Legation, Japan,
Tokei, November 19, 1874.

Hon. Hamilton Fish,
Secretary of State,
Washington, D.C.

Sir:

It is a pleasure to communicate to you the official information that war has been averted between China and Japan by negotiation, as per the convention concluded between the two Powers, a 1/152 translation of which I have the honor to enclose herewith. I have the honor further to inform you that Mr Okubo, the

the Japanese Ambassador to China, who concluded this settlement, called on me on the day of his departure for China and signified his wish for a letter to our Minister at Peking, when I took occasion, as the subject of his mission was spoken of especially by him, to say that it seemed to me that it greatly concerned Japan to avoid a national war with China, and that while I had every assurance that he would seek an honorable and just settlement by negotiation, it seemed to me that no question of pecuniary indemnity should be allowed to defeat a peaceful solution of the grave difficulty.

I am glad that Mr Okubo has had the good fortune to save his country from a protracted war, and that he was careful not to allow the demand of money as an indemnity or compensation to defeat a settlement.

I have the honor to enclose
152 herewith (Enclosure 2.) a copy of my reply to the letter of the Minister for Foreign Affairs transmitting to me the text of this Convention, which

which reply I hope will meet your approval.

I am, Sir,
Your obedient servant,
Jno. A. Bingham

No 152.

Enclosure 1.

Copy.

Foreign Office, Tokio,
19th of 11th Month, 7th
Year of Meiji. (19 Nov. 1874.)

H. E. John A. Bingham,
E. E. & M. P. of the U.S.

Sir:

I have the honor to inform Y. E. that a convention has been concluded between the Empires of Japan and China touching the Formosan question and the Japanese Government has promulgated the text thereof among its people as you will find in the accompanying enclosure, which I have the pleasure of enclosing for Y. Ex.'s perusal.

With respect & consideration,

(Signed.) Terashima Munenori,
H.I.J.M. Minister
for Foreign Affairs.

No 152.

Duplicate.

Enclosure 1.

No. 126. (Translation of text in Japanese sent to the Legation by the Minister for F.A.)

Having established the following treaty with the Government of China for the management of the barbarous country of Formosa, it is now published.

Sanjo. Saneyoshi, Daijodaijin.
17th of the 11th month of 7th year of Meiji.

Convention.

Okubo, Envoy Extraordinary, Sangi, &c
Head of the Department of the Interior
of Japan.

Officers instructed to manage the Foreign Affairs of China.

Sei, Officer of the Im. Household.
So. Secretary of Public Works.
To. " " Census.

Ho. Secretary of Arsenal.
Kyo-shin-wo. Uncle of the Emperor & Prince K
Bun. Secretary of Imp- College &c.
Mo. Inspector of Officers.
Chin. Chief of Arsenal &c.
So. Officer of 1st Rank.
Ka. " " 3d " .

This Convention has been concluded for the purpose of establishing mutually convenient regulations.

It is evident that the people of all lands should preserve the peace & refrain from injuring one another, & when this is the case, each nation, for itself, should enact laws so as to perpetuate this state of things; and when, in any country, an event occurs, tending to disturb the peace, any other country may investigate the matter. In the present

instance, the barbarians of Formosa, having repeatedly & lawlessly injured the subjects of Japan, the Japanese Government has sent troops for the purpose of investigating the matter, who have gone & chastised the savages. Now Japan & China withdraw the troops, & having concluded convenient regulations for future intercourse, agree upon the following articles.

I. In this matter, the Empire of Japan has justly undertaken this enterprise for the purpose of protecting its subjects; and China does not regard this as wrong.

II. China will give money compensation to the families injured; & also wishes to retain and use the roads which the Japanese have made & the buildings which they have erected.

in Formosa; the price of which will first be fixed, & the evidences of the payment of the money given elsewhere.

III. All correspondence which has passed between the two countries relative to the Formosan matter, will be returned and destroyed & discussion on this subject will cease. As to the natives of that Country, China engages to enact good laws. Observe the articles of the treaty by always protecting passengers by sea, so that the evil complained of shall not again occur.

10th month of 7 year of Meiji.
& 9th " " 13th " " Doji.
Yanagiwara. Minister Plenipotentiary of Japan.

Articles of Agreement.

Okubo. Envoy Extraordinary, Sangi & Head of the Department of the Interior of Japan.

Officers instructed to manage the Foreign Affairs of China.

Sei.	Officer of Imp Household.
So.	Secty of Public works.
To.	" " Census.
He.	" " Arsenal.
Kyo-shin wo:	(Uncle of the Emperor [i.e. Prince Kung]
Bun.	Secty of Imp. College &c.
Mo.	Inspector of Officers.
Chin.	Chief of Arsenal. &c.
So.	Officer of 1st Rank &c.
Ka	" " 3 " &c.

For the purpose of concluding the Articles of Agreement relative to the

Formosan matter Mr Wade (?), an English Official, has advised with the representatives of both Countries, & at the sametime testifies to the Agreement entered into.

China pays 100,000 taels compensation money to the families of the Japanese Subjects who have been injured. Also China desires to keep & use the roads which the Japanese have made, & the buildings which they have erected in the country of Formosa. & agrees to pay for the same the sum of 400,000 taels.

It is also agreed that on the 20th day of the 12th month of the 7th year of Meiji, or 12th day of 11th month of the 13th year of Doji. Japan will withdraw all the troops: & China will

pay all the money, without further delay. As long, however, as the Japanese do not withdraw all the troops, China, on her part, will not pay the entire sum of money agreed upon.

As proof of having consented to the foregoing, both parties take a copy of the above agreement.

10 Month of 7th Year of Meiji.

(Seal.) Yanagiwara Minister Plenipotentiary of Japan.

(Seal.) 9th Month of 13th Year of Doji.

No 152.

Enclosure 2.

Copy.

No 113.

United States Legation,
Tokei, Nov. 19, 1874.

Your Excellency:

I have the honor to acknowledge the receipt of your despatch, No 94, of date the 19th inst. in which you make known to me that a convention has been concluded between the Empires of Japan and China upon the Formosa question, the text of which Y. E. is pleased to enclose to me.

I

His Excellency
Terashima Munenori,
H. I. J. M. Minister
for Foreign Affairs

I am sure that this result obtained by peaceful negotiation will be a cause of great gratification to my government and to the people of the United States; and allow me to add that I esteem this action of Japan in settling the controversy with China by reason, rather than by an appeal to arms, honorable to Japan and an example worthy to be followed by all nations under like circumstances.

I have the honor to be
Y. Ex's obedt. servant,
Jno. A. Bingham